

The Bihar Journalist Welfare Fund Rules, 2010

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The Bihar Journalist Welfare Fund Rules, 2010

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The Bihar Journalist Welfare Fund Rules, 2010

Rule THE-BIHAR-JOURNALIST-WELFARE-FUND-RULES-2010 of 2010

Published on 19 July 2010

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The Bihar Journalist Welfare Fund Rules, 2010

Published vide Notification No-Press-311/08-39-3801 & PR., 19th July, 2010, Bihar Gazette (Extraordinary) No. 510, dated 23rd July, 2010

(Rules regarding the establishment of Journalist Welfare Fund to help and to aid Journalists by the Government of Bihar)

No-Press-311/08-39-3801 & PR. - In exercise of its executive powers conferred under Article 162 of the Constitution of India the State Government makes the following Rules:-

1.

Title.

- It shall be called the Bihar Journalist Welfare Fund Rules, 2010 for providing aid/medical treatment to the media representatives/photographers working at the Bihar State Headquarter and at district/subdivision/block level.

2.

Under these Rules the journalists/photographers of the State of Bihar shall be provided economic aid during financial crisis/medical treatment.

3.

Date of commencement.

- These Rules shall come into force from the date of its publication in the Bihar Gazette.

4.

All orders/instructions relating to subject issued earlier including the Journalist Welfare Fund Rules, 1981 shall be hereby superseded by this policy of the journalist Welfare Fund.

Notwithstanding the supersession of such orders/instructions, any work done or any action taken in exercise of the powers conferred under the said orders/instructions shall be deemed to be done or taken under the powers conferred by this policy as if the policy was enforced on that day when such work was done or such action was taken.

5.

Amendment.

- The State Government shall assess the implementation of this policy from time to time and may amend as necessary.

6.

Definitions.

- In these Rules Unless otherwise required in the subject and context;

(i)

'Fund' means the Journalist Welfare Fund.

(ii)

'State' means the State of Bihar.

(iii)

'Government' means the Government of Bihar.

(iv)

'Director' means the Director, Information and Public Relations, Government of Bihar.

(v)

'Journalist' means the Journalist/Photographer/Editor/News Editor/Sub Editor/Cartoonist as per Working Journalist Act, 1955 (as amended and defined from time to time) who are affiliated to any daily/weekly/ fortnightly news paper/ magazine/agency/electronic media/news portal/ channel/news agency etc. (including press reporters/cameramen on contract/stringer) and they must be in the profession for at least two years.

(vi)

'News paper' means a regular publication containing news of the public opinion or comments on such news.

(viii)

The news media includes news papers, wire and non-wire, news agency news/feature agency, electronic media, electronic media agency, news portal which publish news and write-ups in public interest.

(viii)

Bihar Journalist Welfare Fund Steering Committee' hereinafter referred as 'Steering Committee' means such advisory committee which will take decision on financial aid to the working, retired journalists of the State and their dependents at the time of crisis/illness.

7.

Constitution of the Steering Committee.

- The 'Bihar Journalist Welfare Fund Steering Committee' shall be constituted by the State Government for operating Journalist Welfare Fund to be established under these Rules. A notification shall be issued by the State Government in this regard.

8.

Term of the Steering Committee.

- The maximum term of the Steering Committee shall be of one year. The term of the Steering Committee may be extended for a specified period, as per the need, by a Govt, order published in the Bihar Gazette.

9.

Number of the members in the Steering Committee.

- There shall be a total of eleven members in the Steering Committee.

10.

The Principal Secretary/Secretary, Information and Public Relations Department shall be its ex-officio Chairman. In this Committee there shall be five members (in which one member would be from Urdu News Papers) from journalists having at least ten years of experience in journalism. They will be nominated by the State Government

11.

The Director, Information and Public Relations Department shall be its ex-officio Deputy Chairman.

12.

One Officer (not below the rank of Deputy Secretary) each, nominated by the Principal Secretary/Secretary of Home Department and Finance Department shall be the member of this Committee.

13.

An officer nominated by Director in-charge of Press Information Bureau shall be the member of this Committee.

14.

Joint Director-Press/ Deputy Director-Press (In absence of Joint Director-Press) shall be its Member Secretary.

15.

Normally, the meeting shall be convened once in three months. A notice of at least fifteen days before the scheduled meeting will be served on the members mentioning the date, time and venue of the meeting. In special circumstances an emergency meeting may be convened on 24 hours prior notice.

16.

One third of the existing members shall form the Quorum for a meeting.

17.

The meeting shall be convened by the Chairman of the Committee. The Deputy Chairman, with the permission of the Chairman may also convene and preside a meeting. Provided that, the recommendation received from the committee, must be approved by the Chairman.

18.

Earlier, basic structure of the Journalist Welfare Fund was initiated by the Government with an amount of Rs. three lac. At present the total amount of Rs. 5705353/- is deposited in Secretariat branch of State Bank of India out of which Rs. 1591800/- is as a fixed deposit and Rs. 4113553/- in saving account no. 10839123731. The account will be operated by Joint Director, Press, cum member Secretary of the Committee.

19.

The Government may provide a yearly grant to the fund and this shall be incorporated in the budgetary provision of the Information and Public Relations Department.

20.

Donations shall be received from owners/ managers/ representatives of private persons/ institutions/newspapers/ magazines/ agencies/ electronic media/ news portal/channels for the enhancement of the amount in this fund. The donations received from these sources shall be deposited in the bank account of the committee. The donations shall be received only in the form of crossed cheques/bank drafts and to be deposited in the account of Journalist Welfare Fund.

21.

Investment - A maximum 50% of the total deposit in the fund shall be kept in a fixed deposit accounts of Nationalised Banks. It shall be calculated at the beginning of each financial year.

22.

Out of this fund the dependents of the deceased journalists/photographers shall also be provided an aid of maximum Rs. fifty thousand only once.

23.

The living and distressed/ailing journalists shall be provided aid out of this fund on the following priorities-

(a)

Such working/retired journalist/photographers or their dependents who are suffering from disease and need urgent treatment.

(b)

Such working/retired journalists/photographers, who have been rendered unemployed due to ill health, shall be provided maximum Rs. fifty thousand aid only once.

24.

From this Fund, aid shall be provided to any one of the dependents of deceased journalists/photographers on the basis of the following priorities.

1. Widow
2. Unemployed son below the age of 21 years
3. Unmarried and unemployed daughter below the age of 21 years

4. Father

5. Mother

25.

The amount of aid to the journalists/their dependents shall be maximum of Rs. 15 thousand at a time. However in case of serious illness the maximum amount of aid shall be Rs. 25 thousand for treatment in the State and Rs. 50 thousand for treatment outside the State.

26.

If it comes to the notice of the steering committee that the sanction has been granted by mistake or to an improper person or the financial aid has been obtained by manipulation, the sanction of financial aid may be cancelled at any time.

27.

The application for the financial aid shall be submitted, in prescribed form (Appendix A) with desired enclosures (Appendix B), to the Joint Director (Press)/ Deputy Director (Press) Information and Public Relations Department-cum-Member Secretary of the Steering Committee. The recommendation of anyone of the following shall be essential with the application:-

(a)

Recommendation of the Editor/Organiser/Manager of the institution where journalist/photographer is working.

(b)

Recommendation of the Chairman or Secretary of the Bihar Working Journalist Union/Bihar National Union of Journalists/any registered Journalist Union.

(c)

Recommendation of the concerned District Magistrate or Public Relations officer.

(d)

Recommendation of any member of the Steering Committee.

(e)

Recommendation of the Block Development Officer of the concerned block.

28.

The financial aid in respect of illness shall be granted only on the certificate of a doctor. In case of treatment outside the State it shall be essential to submit the medical certificate obtained from the Doctor-in-chief of the medical institution.

29.

The financial aid, out of this fund, to any journalist or his/her dependent shall be granted only twice during his life time.

30.

All the applications shall be placed in the meeting of the Steering Committee of the Bihar State Journalist Welfare Fund for consideration. The Steering Committee shall make a decision after considering the eligibility/non-eligibility of each application.

31.

The application form (Appendix A) must be duly filled up and accompanied with all necessary documents.

32.

For the matters not covered in these Rules, the necessary approval of the Departmental Minister shall be obtained on the basis of the recommendation of the Steering Committee.

33.

(i)

The Deputy Chairman of the Steering Committee of the Journalist Welfare fund shall maintain a cash book similar to that in T.C. Form-6 and all the transaction of the Journalist Welfare Fund shall be entered into it and after receiving any donation shall grant a receipt to the persons concerned.

(ii)

Its accounts shall be audited every year by the Finance (Audit) Department for which the Deputy Chairman of the Steering Committee shall make the necessary coordination.

Appendix "A"

(Proforma for application for Financial Aid from Bihar Journalists Welfare Fund)

To,

The Joint Director (Press)

Information and Public Relations Department, Bihar, Patna.

1. Full Name-

2. Date of Birth-

3. (a) Permanent Address-

(b)

Correspondence Address-

4. Details of living Journalists/Photographers:-

(a)

Full details of the service of the Journalists/Photographers.

(b)

If unemployed due to health/illness or are in grip of illness (Please attach the certificate from Doctor's as pertaining in Rule).

(c)

If unemployed, due to other reasons.

5. Dependent of the Journalists:-

(a)

Full details regarding service of the deceased Journalists/ Photographers,

(b)

Relation of the applicant to the deceased Journalists/Photographers (Such as-Father/ Mother/ Unemployed Son/Unemployed Unmarried Daughter below the age of 21 years.)

(c)

Date of birth of the applicant:-

6. Declaration:-

(a)

I do hereby declare that my annual income from all sources are.....Rs.

(b)

Facts and figures given above are true to my knowledge and belief.

Place

Signature of the applicant

Date.....

Appendix "B"

The application for the financial aid shall be submitted with the recommendation of one of the following:-

- a. Recommendation of the editor/organizer/manager of the institution/ where Journalist/ photographer is working.
- b. Recommendation of the Chairman or Secretary of the Bihar Working Journalist Union/Bihar National Journalist Union/any registered Journalists Union.
- c. Recommendation of the concerned D.M/ D.P.R.O
- d. Recommendation of any member of the steering committee.
- e. Recommendation of the Block Development Officer of the concerned Block.

Recommendation

I do hereby certify that facts and figures given in the application are true to my belief and knowledge:-

1. Applicant is fit for financial aid from Bihar working Journalist fund.
2. Applicant is unable to serve the office or unemployed due to ill health/over age/or for other reasons.
3. Applicant is the (Father/Mother/Unemployed Son/Unemployed Unmarried Daughter) of the deceased Journalists/Photographers.

4. The age of the applicant is true according to his/her birth certificate/ or other relevant papers shown by him/her.
5. Annual income of the applicants.....Rs.
6. Facts and figures given by the applicants is true to my belief and knowledge.

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